

RETURNED CHECK NOTICE

From: _____

Date: _____

To: _____

Dear _____:

Your bank has returned your check to us in the amount of \$ _____.
This check was payment for _____. In addition, this makes your payment late, which disqualifies you for any rent discount or subject to a late charge of. Also, as your rental agreement states, there is a returned check fee for any payment that is returned for non-sufficient funds.

This makes your account past due and delinquent. You must immediately make arrangements to bring your account current by sending us certified funds (money order or certified check). The total amount now due is:

_____ Regular rent payment \$ _____

_____ Loss of discount or late charge \$ _____

_____ Returned check fee \$ _____

_____ Total amount due \$ _____

This amount must be paid within _____ days.

Thank you for your prompt cooperation.

Sincerely,

Rental Manager

NOTICE TO PAY RENT OR QUIT

Please note: This notice is provided **only as an example** of a typical notice that was used in the past in some states. Many states now have certain standards that **MUST** be followed in a legal termination notice, including specific wording or content. Some states have specific standards for the look, format, wording size and type. You must also check state statutes for the correct number of days residents must be allowed to pay rent or deliver up possession, which must be stated in the notice. All this is why when preparing such a notice, you should consult your local and state landlord-tenant statutes. Or obtain a state specific legal form that complies with landlord-tenant law for your state, so that your notice will be valid and enforceable. If not, a judge may simply dismiss the case in favor of your resident. It's recommended that you seek counsel, before proceeding, if you have never gone through the steps in the legal eviction process or if you have any questions.

To: _____,

and all other residents in possession of the premises at the following address:

PLEASE TAKE NOTICE that according to the terms of your rental agreement the rent is now due and payable for the above stated address which you currently hold and occupy. Our records indicate that your rental account is delinquent in the amount itemized as follows:

Rental Period (dates) _____ Rent Due \$ _____

Rental Period (dates) _____ Rent Due \$ _____

Rental Period (dates) _____ Rent Due \$ _____

TOTAL RENT DUE \$ _____

Less partial payment of \$ _____

TOTAL BALANCE DUE of \$ _____

You are hereby required to pay said rent in full within _____ days or to remove from and deliver up possession of the above address or legal proceedings will be instituted against you to recover possession of said premises, to declare the forfeiture of the Lease or Rental Agreement under which you occupy said premises and to recover all rents due and damages, together with court costs, legal and attorney fees, according to the terms of your Lease or Rental Agreement.

Dated this _____ day of _____, 20____

Owner/Manager _____ Phone _____

PROOF OF SERVICE

I, the undersigned, being at least 18 years of age, declare under penalty of perjury that I served the above notice, of which this is a true copy, on the above-mentioned resident(s) in possession in the manner(s) indicated below:

___ On _____, 20____, I handed the notice to the resident(s) personally.

___ On _____, 20____, after attempting personal service, I handed the notice to a person of suitable age and discretion at the residence/business of the resident(s), AND I deposited a true copy in the U.S. Mail, in a sealed envelope with postage fully prepaid, addressed to the resident(s) at his/her/their place of residence (date mailed, if different from above date _____).

___ On _____, 20____, after attempting service in both manners indicated above, I posted the notice in a conspicuous place at the residence of the resident(s), AND I deposited a true copy in the U.S. Mail, in a sealed envelope with postage fully prepaid, addressed to the resident(s) at his/her/their place of residence (date mailed, if different from above date _____).

Executed on _____, 20____, at the County/City of _____

State of _____ Served by _____